

Dispute Chamber

Decision 70/2025 of April 18, 2025

File number: DOS-2022-02223

Subject: Inquiry of minor students regarding substance use, gambling, and gaming in the context of developing a health policy at school

The Dispute Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, chair, and Messrs. Dirk Van Der Kelen and Jelle Stassijns, members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter "GDPR";

Considering the Act of December 3, 2017, establishing the Data Protection Authority, hereinafter "WOG";

Considering the internal rules of procedure, as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents of the file;

Has made the following decision regarding:

The complainant:

X, hereinafter "the complainant"

The respondent:

Educational institutions Y, hereinafter "the respondent"

Decision on the merits 70/2025 — 2/14

#### I. Facts and Procedure

1. On May 18, 2022, the complainant filed a complaint with the Data Protection Authority against the respondent.

2. The subject of the complaint concerns the online questioning via Smartschool of minor students regarding drug and alcohol use, gaming, and gambling in order to develop a health policy at school. The complainant argues that there is no anonymous data processing, which would violate the principle of minimal data processing. Furthermore, he states that his daughter's data is being processed without the required free, informed consent, which is all the more important given that the inquiry processes information about his daughter's health status for which explicit consent is required.

3. On May 31, 2022, the complaint is declared admissible by the First Line Service based on Articles 58 and 60 WOG and is forwarded to the Dispute Chamber based on Article 62, § 1 WOG.

4. On February 2, 2023, the Dispute Chamber decides based on Article 95, § 1, 1° and Article 98 WOG that the file is ready for substantive treatment and the parties involved are notified by registered mail of the provisions as mentioned in Article 95, § 2, as well as those in Article 98 WOG. They are also informed based on Article 99 WOG of the deadlines to submit their defenses. The deadline for receipt of the respondent's statement of defense was set for March 16, 2023, for the complainant's reply on April 6, 2023, and for the respondent's rejoinder on April 27, 2023.

5. On February 3, 2023, the complainant indicates a desire to be heard, in accordance with Article 98 WOG.

6. On February 15, 2023, the respondent requests a copy of the file (Article 95, § 2, 3° WOG), which was provided to him on February 16, 2023, and the respondent accepts all communication regarding the case electronically.

7. On March 16, 2023, the Dispute Chamber receives the respondent's statement of defense. It essentially argues that the respondent does not act as the data controller, that the data is anonymous, which the respondent considers not subject to the GDPR, and that the principle of minimal data processing has been complied with. The respondent also states that Article 8 GDPR (Conditions applicable to children's consent in relation to information society services) is not applicable.

Decision on the Merits 70/2025 — 3/14

8.

On April 3, 2023, the Dispute Chamber receives the reply conclusion from the complainant. The complainant confirms the respondent's assertion that the students were not required to use the Smartschool platform to complete the survey. In summary, the complainant further states that the respondent is the data controller for all student data, which the complainant disputes as being anonymous. The complainant also raises concerns regarding the technical and organizational measures to ensure the security of the student data. Regarding the legal basis, the complainant asserts that consent must be the legal basis and that it must be informed, clear, and unambiguous.

9.

On April 27, 2023, the Dispute Chamber receives the reply conclusion from the respondent, reiterating the position as stated in the response conclusion.

10.

On June 24, 2024, the parties are notified that the hearing will take place on July 5, 2024.

11.

On July 5, 2024, the parties are heard by the Dispute Chamber.

12.

On July 8, 2024, the minutes of the hearing are presented to the parties.

13.

The Dispute Chamber has not received any comments from the parties regarding the minutes. On July 8, 2024, the complainant provides the Dispute Chamber and the respondent with the manual on the organization of the expertise center Z-student survey, which includes the option to complete the survey from home, as referenced during the hearing.

## II. Reasoning

### a) Data Controller and Data Processing

14.

The complainant has filed a complaint against the respondent, a school with his 13-year-old daughter as a student. Additionally, the complainant indicates in the complaint that he has sent his comments regarding the use of consent to the education umbrella organization and the organizing non-profit organization.

15.

The respondent argues that it does not hold the status of data controller but asserts that the expertise center Z acts as the data controller for the student survey.

16.

The Dispute Chamber notes that the Secondary Education Code<sup>1</sup> serves as the basis for determining the entity that holds the status of data controller.

1 Codification of December 17, 2010, concerning secondary education, coordinated on December 17, 2010.

Decision on the merits 70/2025 — 4/14

must be attributed. This particularly concerns Article 123/222 of this Code, which stipulates that the school is required to develop a policy on student guidance that is tailored to the needs of the student population and the context in which the school operates. As the respondent points out, the Flemish Ministry of Education and Training provides schools with tools for developing a policy on student guidance and also for creating an alcohol and drug policy at school.

17. The intended purpose is thus established in the relevant Article 123/22 of the Secondary Education Code, namely the development of a policy on student guidance tailored to the needs of the students and the context of the school. The realization of this purpose is explicitly attributed to the school in this provision of the Code. This means that the creation of an alcohol and drug policy at school is a task assigned to the school within the framework of developing a policy on student guidance. Based on this provision in the Code, this purpose must therefore be regarded as inherent to the school, since the school is explicitly designated in this provision as the entity that establishes the purpose of "development of a policy regarding student guidance," which includes a policy on alcohol and drugs.

The goal of the processing is thus established in the Code. The school can be identified as the data controller, as it is designated by law for the realization of this purpose, this public task.

2 Art. 123/22. The school develops a policy on student guidance that is aligned with the pedagogical project, the needs of the student population, and the context in which the school operates. The policy on student guidance includes the guidance of students, supporting the actions of the teaching staff, the policy for the prevention of isolation and restraint and for the reduction of such measures, as mentioned in Article 123/24/1, if the school or center develops a policy on this, and the coordination of all student guidance initiatives at the school level. The school implements, evaluates, and adjusts this policy as necessary. To strengthen this policy, the school conducts a professionalization policy. The school designates one or more staff members within its personnel framework who are fully or partially responsible for student guidance.

In the preparation and evaluation of the policy on student guidance, the school involves relevant partners. For additional substantive expertise, the school calls upon the student guidance center. For school support, the school seeks external assistance from the pedagogical guidance service, possibly in collaboration with an external service. For expertise regarding education for students with specific educational needs, the school involves the learning support center.

A policy on student guidance adheres to the following principles:

1° the importance of each student is central;

2° it is developed participatively and is supported by the entire school team;

3° it is goal-oriented, systematic, planned, and transparent;

4° it is executed discreetly;

5° it is clarified who takes on which task in student guidance, with mention of the competent staff, as referred to in Article 123/24/4, § 1, 3°, if there is a policy for the prevention of isolation and restraint and for the reduction of such measures, as mentioned in Article 123/24/1.

3

<https://onderwijs.vlaanderen.be/nl/directies-en-administraties/onderwijsinhoud-en-leerlingenbegeleiding/secundair-onderwijs/schoolondersteuning-bij-grensoverschrijdend-gedrag/alcohol-en-drugsbeleid-op-school>

4 As outlined in Guidelines 07/2020 on the concepts of "data controller" and "processor" in the GDPR (paragraphs 22-24):

<https://www.edpb.europa.eu/our-work-tools/our-documents/guidelines/guidelines-072020-concepts-controller-and-processor-gdpr-nl>.

Decision on the Merits 70/2025 — 5/14

18. Furthermore, Article 123/22 of the Codex also specifies the means that the school must employ in order to achieve the stated objective. These means are: firstly, involving relevant partners in the formulation and evaluation of the policy on student guidance, and secondly, seeking external support from the pedagogical guidance service, possibly in collaboration with an external service for the benefit of school support.

19. It follows that both the purpose and the means are legally defined and attributed to the school, which acts as the data controller within the meaning of Article 4, 7) GDPR<sup>5</sup>.

20. Indeed, in order to achieve the stated purpose, the Codex stipulates that the school involves relevant partners and engages an external service for support. As the respondent points out, the external service expertise center Z is recommended by the Flemish Ministry of Education and Training. It follows that it is by no means an obligation for the school to have the student survey and the associated data processing carried out by the external service expertise center Z. It is therefore at the school's discretion to call upon expertise center Z. This is confirmed in Article 1 of the contract concluded between the respondent on one side and expertise center Z on the other, which states that the school voluntarily participates in the student survey. This leads to the conclusion that not only the purpose of student guidance, which must be realized by the school and is thus entirely the school's own, but also the means to achieve this, are determined by the school. It is indeed the school that decides how the personal data of its students will be processed to achieve this goal and that decides to engage an external partner, in this case expertise center Z, which will carry out this data processing on

its behalf.

21. It is therefore the responsibility of the school to ensure that the processing of the personal data of its students is in accordance with the GDPR, particularly when the school decides to have the data processing carried out by expertise center Z and this data, as in the present case, may lead to the processing of sensitive information. In this context, a contract was also concluded between the respondent on one side and expertise center Z on the other. This shows

5 Article 4 GDPR.

For the purposes of this regulation, the following definitions apply:

[...]

7) “data controller”: a natural or legal person, a public authority, an agency, or any other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union law or the law of a Member State, it may be provided that the controller or the criteria for its designation shall be laid down; [own emphasis]

Decision on the merits 70/2025 — 6/14

that expert center Z can process the data obtained through the student survey after being commissioned by the school as the data controller. Expert center Z can thus be considered a processor in the sense of Article 4, paragraph 8 of the GDPR.

22. In accordance with Article 123/22 of the Code, it is therefore fully in line with the designation of the school as the data controller that it is included in the mutual relationship between the respondent and expert center Z that the respondent is solely responsible for compliance with the legal basis on which the student survey is based, as the respondent must obtain consent from students over 13 years of age, or from the parents or guardians for students under 13 years of age. The required prior information must also be provided by the school itself. Furthermore, it is stipulated in the mutual relationship between the parties that no one, including the teacher(s), may view the answers or the screen of the students during the survey, neither physically nor via PC monitoring. It is stated that the questionnaire probes sensitive and personal health data, allowing the student to answer honestly with respect for privacy. It is added in the relevant document that non-compliance with the applicable legislation in this regard may have legal consequences for the school. The Dispute Chamber establishes that the parties thus acknowledge that the school acts as the data controller, as the school is responsible for compliance with the applicable provisions of the GDPR, and that the legal consequences that may arise from non-compliance with the required principles and guarantees regarding data processing should be attributed to the school and thus not to expert center Z, which does not have the status of data controller or joint data controller.

23. The respondent is personally responsible as the data controller for the legality of the data processing. To this end, he requests consent from the data subjects in order to have a valid legal basis for the processing (Article 6 GDPR). Since it often concerns special personal data regarding health, Article 9 GDPR must also be complied with. The respondent is also responsible for providing the essential information to the data subjects (Article 13 GDPR) regarding the data processing (i.e., collection of information regarding substance use, gambling, and gaming; solely for scientific purposes; determination of the retention period, no access to personal data due to lack of possibility for re-identification of the students, both on the part of the school and expert center Z).

6 See the document: “Organizing the expert center Z student survey: manual” referenced in the contract between the respondent and expert center Z.

Decision on the Merits 70/2025 — 7/14

24. From the entirety of these factual elements, it follows that the respondent undeniably determines the essential means of data processing. The respondent argues that he merely follows the procedure of expertise center Z to allow students to participate in the survey, thereby claiming that the essential means are not determined by him, but by expertise center Z. The respondent contends that expertise center Z decides which questions are asked, who can process the answers, which schools can participate, how the survey will be conducted, which reports will be generated, and that expertise center Z has decided to offer the student survey digitally rather than on paper.

25. The role of expertise center Z is limited to determining non-essential means. The Dispute Chamber finds that regarding the preparation and the actual conduct of the survey, the role of expertise center Z is limited to providing the school with the necessary tools, such as a model document regarding informed consent to be adapted by the school for the individuals involved, as well as a manual on the practical organization of the survey, accompanied by an instructional video and instruction card for both teachers and students. These are purely practical aspects related to the student survey that expertise center Z makes available as an external support partner based on its expertise in organizing such surveys. The choice for a digital survey instead of a paper one also falls under such non-essential means. Regarding the questionnaire that expertise center Z provides to the school to conduct the student survey, the Dispute Chamber notes that this list constitutes the concrete implementation of the goal pursued by the school as laid down in Article 123/22 of the Codex. This questionnaire must therefore be regarded solely as the concretization of the category of personal data to be processed as determined by the school, which is necessary for the development of an alcohol and drug policy at school, albeit developed based on the knowledge and experience of expertise center Z regarding its formulation.

26. By opting to engage expertise center Z as an external partner that provides support for the student survey, the respondent has chosen to have the students' data processed by expertise center Z, whereby after the survey, the data from the completed questionnaires are stored on an external server, in an aggregated database.

27. The contract between the respondent and expertise center Z states that expertise center Z processes the collected data from the school and has exclusive access to it.

7 Guidelines 07/2020 on the concepts of "controller" and "processor" in the GDPR (paragraphs 39 et seq.):

<https://www.edpb.europa.eu/our-work-tools/our-documents/guidelines/guidelines-072020-concepts-controller-and-processor-gdpr-nl>

Decision on the merits 70/2025 — 8/14

to the data in an anonymized database. It has also been determined that no one, including expertise center Z, can link individual results to a specific person. Furthermore, no one, except for expertise center Z, can link the school data to the school, as each school receives a unique code known only to expertise center Z. The school receives a report from expertise center Z containing the anonymous results of the school, which helps the school gain insight into the environment of the students attending the school, allowing it to plan a preventive offer tailored to these results. This provides sufficient reason for the respondent to assert that no processing of personal data occurs in his case.

28. In this regard, the Dispute Chamber recalls that it is not necessary for the data controller to have actual access to the data being processed. A person who outsources a processing activity and has a decisive influence on the purpose and means of the processing should be considered a data controller, even if he or she never actually has access to the data. The Court of Justice of the European Union confirmed this in the judgment IAB Europe. The anonymous reporting based on the aggregated data processing carried out by expertise center Z following the information collected through the student survey does not detract from the fact that the respondent indeed acts as a data controller.

29. The Dispute Chamber points out that it is established that the student survey at the time of its administration implies the processing of personal data, as the school collects information provided by the students through the posed questions. The fact that the respondent employs a method whereby the student, after logging in with the assigned unique login code, must adjust his or her login details in such a way that a new password must be chosen while retaining the username does not change this. Each participating student initially provides information relating to his or her person through the answers to the posed questions. The Dispute Chamber judges that the entirety of answers is normally specific enough and unique to a particular person, such that that person is identifiable. Furthermore, the contract concluded between the respondent and expertise center Z stipulates that a unique code is generated for each student, allowing the student to log in on the school computer or on their own computer, mobile phone, or tablet. Additionally, this contract also states that for students who do not have their own mobile phone,

8 Guidelines 07/2020 on the concepts of “data controller” and “processor” in the GDPR (paragraphs 44-45):

[https://www.edpb.europa.eu/our-work-tools/our-documents/guidelines/guidelines-072020-concepts-controller-and-processor-gdpr\\_nl](https://www.edpb.europa.eu/our-work-tools/our-documents/guidelines/guidelines-072020-concepts-controller-and-processor-gdpr_nl)

9 Judgment of March 7, 2024, C-604/22, ECLI:EU:C:2024:214, para 69.

Decision on the Merits 70/2025 — 9/14

the school must provide the opportunity to fill out the questionnaire in the computer room. To facilitate the creation of login codes, the school must provide an Excel list with the first names and class codes of all students to expertise center Z. These elements do not indicate that there are anonymous data in the sense of Article 4.1 GDPR<sup>10</sup> and Recital 26 GDPR<sup>11</sup>. In contrast, the respondent merely states during the hearing that the survey was conducted at the school and that the students who were not present at school within the designated time slot did not participate in the survey. The respondent adds that the school has one internet line with one IP address, such that based on the IP address used for filling out the survey, no unique person can be identified. However, the claim that students could only participate from the school via a single IP address was not substantiated by the respondent.

30. The Dispute Chamber notes that the respondent does not in any way demonstrate that the anonymity of the processed data is ensured. The respondent states in the conclusion that since the survey came from expertise center Z and it was clearly stated by expertise center Z that this survey was completely anonymous and that no one could deduce from the data or the results who provided which information, the respondent decided to participate in the research. In this regard, the Dispute Chamber points out that Article 5.2 GDPR<sup>12</sup> provides for an accountability obligation on the part of the data controller, in this case, the respondent, as previously outlined. The Dispute Chamber is of the opinion that if the respondent considered the anonymous data processing by expertise center Z to be sufficient to achieve the intended purpose, the respondent should have ensured that the data of the

<sup>10</sup> Article 4 GDPR:

For the purposes of this Regulation, the following definitions apply:

1)

“personal data”: any information relating to an identified or identifiable natural person (“data subject”); an identifiable natural person is one who can be identified, directly or indirectly, particularly by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

<sup>11</sup> Recital 26 GDPR:

The principles of data protection should apply to any information concerning an identified or identifiable natural person. Pseudonymised personal data which can be attributed to a natural person by the use of additional information should be considered as data about an identifiable natural person. To determine whether a natural person is identifiable, all means reasonably likely to be used by the data controller or by another person to identify the natural person, directly or indirectly, should be taken into account, for example, selection techniques. In determining whether means are reasonably likely to be used to identify the natural person, all objective factors should be considered, such as the costs of and the time required for identification, taking into account the available technology at the time of processing and the technological developments. The data protection principles should therefore not apply to anonymous data, namely data that does not relate to an identified or identifiable natural person or to personal data that have been rendered anonymous in such a way that the data subject is not or no longer identifiable. This Regulation does not therefore apply to the processing of such anonymous data, including for statistical or research purposes.

<sup>12</sup> Article 5.2 GDPR: The data controller is responsible for compliance with paragraph 1 and can demonstrate this (“accountability”).

Decision on the merits 70/2025 — 10/14

students would indeed be processed anonymously by expertise center Z and that the necessary technical and organizational means were deployed by expertise center Z for this purpose.

31. Since the respondent indicates in his defense that he did not act as the data controller, the Dispute

Chamber must establish that the respondent has not conducted this assessment in accordance with Article 5.1 e) and f) GDPR in conjunction with Article 24.1 and 28.1 GDPR. In the absence of documents in the file regarding the extent to which the necessary technical and organizational measures were provided, the Dispute Chamber limits itself solely to this remark. The same applies to the assessment under Article 5.1 c) GDPR. Although the respondent states that an anonymous survey suffices to achieve the intended goal, in the absence of documents to substantiate the anonymity of the students involved, it cannot be verified whether the principle of data minimization was respected (Article 5.1 c GDPR). Based on the documents available in the file, it is not clear whether a substantive combination of the answers to the questions could lead to the re-identification of a student. It is also unclear how the anonymity of the students is ensured if an Excel list with the first name and class code of all students must be provided by the respondent to expertise center Z for each student, and a unique code is generated with which the student can log in on the school computer or on their own computer, mobile phone, or tablet.

32. The Dispute Chamber concludes that while the respondent, as the data controller, can call upon expertise center Z for substantive support, this does not make expertise center Z a joint data controller with the respondent.

#### b) Lawfulness of the processing

33. The development of a policy regarding student guidance is an obligation imposed on the school, which finds its basis in Article 123/22 of the Codex.

#### Article 24.1 GDPR.

Taking into account the nature, scope, context, and purpose of the processing, as well as the varying risks to the rights and freedoms of natural persons in terms of likelihood and severity, the data controller shall implement appropriate technical and organizational measures to ensure and be able to demonstrate that the processing is performed in accordance with this regulation. These measures are evaluated and updated as necessary.

#### Article 28.1 GDPR.

When processing is carried out on behalf of a data controller, the data controller shall only engage processors who provide sufficient guarantees regarding the application of appropriate technical and organizational measures so that the processing meets the requirements of this regulation and the protection of the rights of the data subject is ensured.

14 See likewise Decision on the merits 31/2020 of June 16, 2020.

#### Decision on the Merits 70/2025 — 11/14

Secondary Education. Student guidance, as defined in Article 3, 17°/1/1 of the Codex

Secondary Education, encompasses a set of preventive and supportive measures.

Student guidance is situated in four domains: educational career, learning and studying, psychological and social functioning, and preventive healthcare. The measures always originate from an integrated and holistic approach for the four guidance domains, based on a continuum of care.

34. The respondent indicates that it has autonomously decided that this data collection should occur through an anonymous survey, in order to align the policy with the needs of the student population. Here too, the respondent maintains the position that the data processing concerns an anonymous survey and that the GDPR is therefore not applicable, such that no consent needs to be requested and no legal basis is required. To this end, the respondent refers to Recital 26 of the GDPR regarding anonymous data processing.

35. As previously outlined, the respondent does not demonstrate based on documents that the student survey was conducted anonymously from the outset of the data collection. The respondent, as the data controller, is obliged under Article 123/22 of the Codex Secondary Education to develop a policy on student guidance. This does not impose an obligation on the respondent to survey the students, nor does it impose an obligation on the students to participate in this survey. However, this does not detract from the fact that the formulation of an alcohol and drug policy at school, as part of student guidance, is to be regarded as a task of general interest for the school. On this basis, the student survey can be organized. It is self-evident that alcohol and drug prevention is an important component

of student guidance and, in this perspective, fits within the needs of the student population as mentioned in Article 123/22 of the Codex. The Dispute Chamber notes that the respondent can invoke its assigned task of general interest (Article 6.1 e) GDPR) which is anchored in a legal norm in accordance with Article 6.3 GDPR. The legal basis to be used by the respondent for the student survey is therefore Article 6.1 e) GDPR, allowing the respondent to process or have processed the collected data by a processor such as expertise center Z.

15 Codification concerning secondary education, coordinated on December 17, 2010

16 Article 6 GDPR:

1. Processing shall be lawful only if and to the extent that at least one of the following conditions is met:

[...]

e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

Decision on the merits 70/2025 — 12/14

36. As outlined above, Article 9 of the GDPR regarding special categories of personal data is also relevant. The content of the questionnaire concerns the use by the respective student of substances (tobacco, alcohol, cannabis, other illegal drugs, etc.) and activities (gaming and gambling), as well as the extent to which students come into contact with these substances in their own environment.

Through the answers provided to these questions, an attempt is made to gain insight into the health status of the individual concerned and to assess the degree to which they do or do not lead a healthy lifestyle. It is therefore established that personal data is being processed within the meaning of Article 9 GDPR, and thus an exception to the prohibition on processing this personal data must also apply.

37. The fact that the respondent conducts student surveys in the context of their public interest task does not exclude that the participation of the students is voluntary and that the data collection, as part of the larger framework of data processing that the student survey entails after the personal data of the students has been collected, is based on explicit consent (Article 9.2 a) GDPR). This explicit consent is required given that the survey collects information about the health status of the students, in this case also of the complainant's daughter. The respondent, as the data controller, can only process the personal data of the students if explicit consent is given. Indeed, none of the other exceptions to the prohibition on processing this personal data apply.

38. The Dispute Chamber clarifies that with regard to students under the age of 18, this explicit consent must be granted by the parents or guardian as legal representatives. The respondent states in the conclusion that if consent were to be the valid legal basis, it would have been sufficient for the data controller to have asked for consent from the individual concerned, in this case the complainant's daughter, since she was already 13 years old at the time of the events. The Dispute Chamber clarifies in this regard that the age limit of 13 years only applies concerning the implementation of Article 8 GDPR and the Article 7 of the Act of July 30, 2018, taken in execution of Article 8.1, paragraph 2 GDPR. Both the complainant and the respondent agree that Article 8 GDPR is not applicable. The Dispute Chamber supports this position, as it was explained in the parties' defense that only the information letter regarding the student survey was sent via Smartschool, while the survey itself did not take place via Smartschool. Consequently, there is no offering of a service of the information society, which constitutes an essential application condition for Article 8 GDPR. Since Article 9.2 a) GDPR is applicable, the general rule (Article 488 Civil Code) must be applied that for minors, including students under 18 years of age, the consent of the parents or guardian is required for the processing of health data.

39. Since the respondent did not specify the capacity of data controller and thus did not investigate on which legal basis the student survey and the associated data processing of the participating students is based, the Dispute Chamber finds that a violation of the legality principle in Article 5.1 a) GDPR, as well as Article 6.1. e) GDPR and Article 9.2. a) GDPR has occurred.

III. Regarding corrective measures and penalties

40. It is up to the Dispute Chamber to determine, based on the options available to it under Article 100, § 1 WOG, the most appropriate sanction for the violation of Article 5.1 a) GDPR, as well as Article 6.1.

e) GDPR and Article 9.2. a) GDPR.

41. In doing so, the Dispute Chamber takes into significant account the uncertainty that existed in the relationship between the respondent and expertise center Z, specifically regarding the question of the designation of the data controller. Since this decision of the Dispute Chamber provides clarification in this regard, it offers the respondent the opportunity to adapt and to ensure necessary transparency regarding the correct legal basis, namely Article 6.1 e) GDPR, in order to avoid any further uncertainty in this regard, and Article 9.2 a) GDPR concerning the processing of health data.

IV. Publication of the decision

42. Given the importance of transparency regarding the decision-making of the Dispute Chamber, this decision will be published on the website of the Data Protection Authority. However, it is not necessary for the identification details of the parties to be disclosed directly for this purpose.

18 Art. 488. Civil Code: The age of majority is established at the full age of eighteen years; at that age, one is capable of all acts of civil life.